

LINDA R. S. v. RICHARD D. ET AL.

APPEAL FROM THE UNITED STATES DISTRICT COURT FOR THE
NORTHERN DISTRICT OF TEXAS

No. 71-6078. Argued December 6, 1972—

Decided March 5, 1973

Appellant, the mother of an illegitimate child, brought a class action to enjoin the "discriminatory application" of Art. 602 of the Texas Penal Code providing that any "parent" who fails to support his "children" is subject to prosecution, but which by state judicial construction applies only to married parents. Appellant sought to enjoin the local district attorney from refraining to prosecute the father of her child. The three-judge District Court dismissed appellant's action for want of standing: *Held*: Although appellant has an interest in her child's support, application of Art. 602 would not result in support but only in the father's incarceration, and a private citizen lacks a judicially cognizable interest in the prosecution or nonprosecution of another. Pp. 616-619.

335 F. Supp. 804, affirmed.

MARSHALL, J., delivered the opinion of the Court, in which BURGER, C. J., and STEWART, POWELL, and REHNQUIST, JJ., joined. WHITE, J., filed a dissenting opinion, in which DOUGLAS, J., joined, *post*, p. 619. BLACKMUN, J., filed a dissenting opinion, in which BRENNAN, J., joined, *post*, p. 622.

Windle Turley argued the cause and filed a brief for appellant.

Robert W. Gauss, Assistant Attorney General of Texas, argued the cause for appellees. On the brief were *Crawford C. Martin*, Attorney General, *Nola White*, First Assistant Attorney General, *Alfred Walker*, Executive Assistant Attorney General, *J. C. Davis* and *Pat Bailey*, Assistant Attorneys General, and *Samuel D. McDaniel*.

MR. JUSTICE MARSHALL delivered the opinion of the Court.

Appellant, the mother of an illegitimate child, brought this action in United States District Court on behalf of herself, her child, and others similarly situated to enjoin